



Republic of the Philippines
Province of Laguna
City of Biñan

OFFICE OF THE CITY COUNCIL SECRETARY

2nd Floor City Annex Bldg., Brgy. Zapote, City of Biñan, Laguna
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AUG 25 2022

MORNA

**ORDINANCE APPROVED BY THE CITY COUNCIL OF BIÑAN, LAGUNA IN ITS REGULAR SESSION
HELD AT THE AMBROSIO RIANZARES BAUTISTA HALL, CITY HALL ANNEX BUILDING, BARANGAY
ZAPOTE, CITY OF BIÑAN, PROVINCE OF LAGUNA DATED AUGUST 1, 2022.**

PRESENT:

Hon. ANGELO B. ALONTE	- City Vice Mayor/Presiding Officer
Hon. JONALINA R. REYES	- Councilor
Hon. ROMMEL R. DICDICAN	- Councilor
Hon. FLAVIANO D. PECAÑA, JR.	- Councilor
Hon. CHRISTOPHER A. ALBA	- Councilor
Hon. JAYSON A. SOUZA	- Councilor
Hon. VICTOR L. CARIÑO	- Councilor
Hon. ELMARIO B. DIMARANAN	- Councilor
Hon. RAFAEL L. CARDEÑO, JR.	- Councilor
Hon. ALVIN Z. GARCIA	- Councilor
Hon. ELVIS D. BEDIA	- Councilor
Hon. RODOLFO C. MONTAÑEZ, JR.	- ABC-Federation President
Hon. MA. ANGELICA QUERUBIN A. ALONTE	- SK-Federation President
IRENE D. BALIDO, MPA	- OIC, City Council Secretary

GUESTS:

Mr. GERONIMO D. ROMANTIGUE	- Former Councilor
Mr. JAIME M. SALANDANAN	- Former Councilor

ABSENT:

Hon. LIBUNERO O. ALATIIT	- Councilor (Sick Leave)
Hon. JOSE FRANCISCO RUBEN P. YATCO	- Councilor (Vacation Leave)

CITY ORDINANCE NO. 6-(2022)

**AN ORDINANCE REGULATING DRONE OPERATION WITHIN ONE HUNDRED (100) METER RADIUS
FROM ALL ESTABLISHED JAIL FACILITIES AND PNP CUSTODIAL FACILITIES, PROVIDING
PENALTIES FOR VIOLATION THEREOF AND FOR OTHER PURPOSES.**

Author: Hon. ROMMEL R. DICDICAN

Chairman, Committee on Police Matters, Public Welfare and Safety

WHEREAS, Remotely Piloted Aircraft System (RPAS) or drones, by their nature, can be used as a tool for gathering information via recording or photographs and there is a growing use of drones today its areas of applications have expanded overtime;

WHEREAS, drones could be used in transporting illegal drugs, deadly weapons, and other contraband, as well in the surveillance of jail facilities and premises, which could very well compromise the safety and security of the jail facilities;

WHEREAS, Under Philippine Civil Aviation Rules 11 and Civil Aviation Authority of the Philippines (CAAP) 21-14, no person may operate small UAV or RPA in a populous area. Pursuant to this rule, jails are considered populous and congested areas.

WHEREAS, The Bureau of Jail Management and Penology (BJMP), pursuant to regulations issued by the Civil Aviation Authority of the Philippines (CAAP), prescribes a Standard Operating Procedure on the detection, prevention and handling of Remotely Piloted Aircraft System (RPAS) or Unmanned Aerial Vehicles (UAV), aimed at maintaining the safety and security of jail facilities of this City;

WHEREAS, the enactment of this ordinance will promote peace and order, enhance the physical security of the jail facilities and guarantee the safety and security of this City and the constituents;

NOW THEREFORE, BE IT ORDAINED BY THE SANGGUNIANG PANLUNGSOD IN SESSION DULY ASSEMBLED, THAT:

SECTION 1. TITLE. This ordinance shall be known as **“AN ORDINANCE REGULATING DRONE OPERATION WITHIN ONE HUNDRED (100) METER RADIUS FROM ALL ESTABLISHED JAIL FACILITIES AND PNP CUSTODIAL FACILITIES, PROVIDING PENALTIES FOR VIOLATION THEREOF AND FOR OTHER PURPOSES”**

SECTION 2. PURPOSE. This ordinance is enacted to ensure and promote public health, safety and security by regulating the operation of drones within one hundred (100) meter radius from all established jail facilities within the territorial jurisdiction of Biñan City.

SECTION 3. DEFINITION OF TERMS. As used in this Ordinance the following terms shall be construed to mean as follows:

- a. **Unmanned Aerial Vehicle (UAV) commonly known as drone** – is an aircraft without a human pilot aboard, UAVs are a component of an unmanned aircraft system (UAS); which includes an UAV, a ground-based controller, and a system of communications between the two. The flight of UAV’s may operate with various degree of autonomy; either under remote control by human operator or autonomous by onboard computers.
- b. **Jail facilities** – a place for the confinement of people accused or convicted of a crime.

SECTION 4. SCOPE. This ordinance shall apply to all persons, who shall willfully operate drone within one hundred (100) meter radius from all established jail facilities and PNP custodial facilities in Binan City.

SECTION 5. EXEMPTION. This ordinance shall not cover law enforcement agencies, emergency management offices and those duly authorized by the LGU with coordination to the Jail Management.

SECTION 6. PENALTIES. Violation of this Ordinance shall be meted the penalty of:

- a. First Offense – A fine of One Thousand Pesos (Php 1,000.00);
- b. Second Offense – A fine of One Thousand Five Hundred Pesos (Php 1,500.00);
- c. Third Offense – A fine of Two Thousand Five Hundred Pesos (Php 2,500.00) or confiscation of the Unmanned Aerial Vehicle (UAV) commonly known as drone and imprisonment for a period of more than three (3) months but not exceeding six (6) months or both such fine and imprisonment at the discretion of the court

SECTION 7. IMPLEMENTING AGENCY. The Philippine National Police (PNP) together with the BJMP officers, shall ensure the strict and faithful enforcement or implementation of this Ordinance.

The Jail Management shall cause the posting of the sign **“NO FLYZONE TO DRONES WITHOUT PERMIT WITHIN 100 METER RADIUS FROM JAIL FACILITY”** conspicuously outside of the jail facility.

SECTION 8. IMPLEMENTING RULES AND REGULATIONS (IRR). The Philippine National Police (PNP) and Public Order and Security Office (POSO), the concerned barangay which has territorial jurisdiction over the jail facilities in the City, as well as the BJMP shall formulate the necessary implementing Rules and Regulations (IRR) of this Ordinance within thirty (30) days from the approval of this ordinance and the same shall immediately be transmitted to the Mayor for approval.

8.1 Guidelines in Securing Permit for the Operation of Drone within Jail Facility

8.1.1 Any person or group of persons who want/s to use or operate drone within or near the jail facility should first secure permit in the Mayor's Office.

8.1.2 Once the permit has been obtained it will be shown to BJMP personnel.

SECTION 9. All ordinances or any section or provision or a part thereof which are contrary to or inconsistent with the provisions of this Ordinance are hereby repealed or amended accordingly.

SECTION 10. If for any reason, any section of provisions of this Ordinance is declared illegal or unconstitutional, the other provisions which are not affected thereby shall continue to be fully force and effect.

SECTION 11. This ordinance shall take effect upon approval.

UNANIMOUSLY APPROVED.

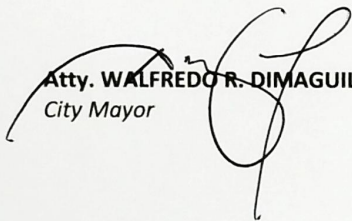
CERTIFIED CORRECT:


IRENE D. BALIDO, MPA
OIC, City Council Secretary

ATTESTED BY:


Hon. ANGELO B. ALONTE
City Vice Mayor/Presiding Officer

APPROVED BY:


Atty. WALFREDO R. DIMAGUILA, JR.
City Mayor